



MOTION on NOTICE

Submitted at the Regular Park Board Meeting on April 27, 2026

Reaffirming Park Board Independence: Capital Planning for Park Board Assets

SUBMITTED BY: Commissioner Christensen

WHEREAS

1. The mission and mandate of the Vancouver Board of Parks and Recreation is to provide, preserve, and advocate for parks and recreation services to benefit all people, communities, and the environment.
2. The Vancouver Charter grants the Park Board the legal capacity to exercise the powers bestowed on it and to enforce those powers and the exercise thereof by actions, proceeding or prosecution.
3. Under the Vancouver Charter, the Board has the exclusive possession of, and exclusive jurisdiction and control of all areas designated as permanent public parks and temporary public parks. This “includes the authority to determine how such real property shall be used, [...], what improvements shall be made thereon, including the removal or demolition of any existing improvements”.
4. On April 22, 2026, City Council passed a motion entitled “Back to Community: Establishing Strategic Priorities and Consolidating Council Direction for the 2027–2030 Capital Plan”, which directed staff to allocate funds within the 2027-2030 Capital Plan for the new construction, renewal, or redevelopment of Park Board assets including community centres, pools, spray parks, turf fields, and park washrooms.
5. It is unprecedented that Council has directed allocation of funding for assets under Park Board jurisdiction prior to and without Park Board’s approval.

THEREFORE BE IT RESOLVED

- A. THAT the Board directs staff to continue with the Capital Plan process without regard to the projects listed within the Council motion of April 22, 2026, and prioritize projects based on already approved Park board plans, strategies, and previous Board directions;
- B. THAT the Board retain independent legal counsel to provide advice on the jurisdiction of Park Board granted under the Vancouver Charter to make Capital Plan allocations in public parks, and to advise on the scope of City Council authority in this regard, if any; and
- C. FURTHER THAT costs for such legal counsel be drawn from the remaining \$20,000 allocation made by the Board at the January 22, 2024 meeting (Independent Legal Advice for Judicial Review of Mayor’s Motion).